# RESPONSIBLE USES OF AI FOR LAWYERS

April 9, 2026

**Slides:**

**https://sampson.info/files/2026-mla-responsible-ai-use.pdf**

****Drop link in the chat****

# LELAND SAMPSON

- Manage People's Law Library website
- Member, Maryland Judiciary's AI Governance Subcommittee
- Co-Chair, MSBA AI & Legal Technology Task Force

# MSBA AI HUB

An Overview of Ethical Considerations for Attorney Use of Generative Artificial Intelligence Technologies

Templates for Law Firm Policy on the Use of Generative Artificial Intelligence
Customizable language to support your legal team's approach to develop an AI Policy

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# AGENDA HIGHLIGHTS

- Rules 1.1, 1.3, and 3.3: Competence, Diligence, and Candor
- Rules 1.2 and 1.4: Communication and Client Consent
- Rule 1.6: Confidentiality of Information
- Rule 5.1: Supervisory Responsibilities
- Rule 8.4: Misconduct and the Catch-All Rule

# RULES 1.1, 1.3, & 3.3:

# COMPETENCE, DILIGENCE, AND CANDOR

# RULE TEXT

Rule 1.1: An attorney shall provide competent representation to a client. **Competent representation requires the legal knowledge, skill, thoroughness and preparation** reasonably necessary for the representation.

Rule 1.3: An attorney shall act with **reasonable diligence** and promptness in representing a client.

Rule 3.3: (a) An attorney shall not knowingly:

(1) **make a false statement of fact or law**; or

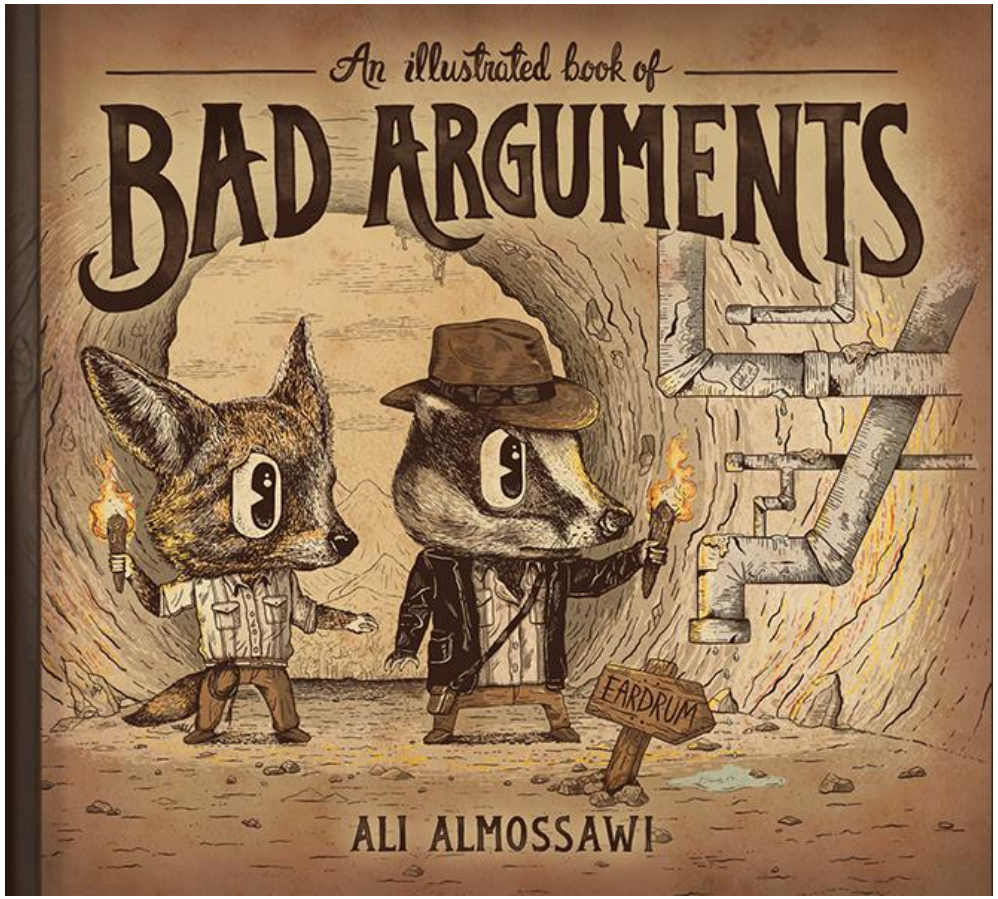
(4) **offer evidence that the attorney knows to be false**.

# NOTE

This section applies to consumer grade general purpose chatbots like:

- ChatGPT
- Claude
- Gemini

MLAGPT will be discussed in the Confidentiality section




# EXAMPLES

- Case database – 1,294 cases so far

- Research Hallucinations
  - Fabricated case or statute citations – most common
  - Fabricated quotes
  - Citing a case that does not stand for the proposition for which it's cited

- Drafting errors
  - Misstated facts
  - Inaccurate internal citations (case record or within document)

# N.Z. *v.* FENIX INTERNATIONAL LIMITED

Document 176-2: Declaration of Celeste Boyd

Document 207: Order denying leave to amend briefs, imposing sanctions

**ERROR CATEGORIES**

The errors identified by defense counsel fall into the following categories:

1. A single hallucinated authority.
2. Authority cited for the correct proposition, but with an incorrect quotation or parenthetical.
3. Authority cited for the incorrect proposition and/or mischaracterized.
4. Incorrect record cites, including one resulting in mischaracterization of the Court's prior order.

# HOW DOES THIS HAPPEN!?

Do not use a prompt that says "find me a case that stands for X"

**ERRORS AS IDENTIFIED BY DEFENDANTS:**

> Plaintiffs' Westlaw citation to *Doe v. Match Group*, 2022 WL 4551660 (C.D. Cal. Aug. 12, 2022) does not direct to any decision available on Westlaw. I ran a nationwide search for dockets or cases matching this case name via Bloomberg Law and Westlaw, and for any cases involving a Doe plaintiff and Match Group defendant. I was unable to find any docket or order matching Plaintiffs' citation or characterization of the case. Dkt. 164 ¶ 17.

**WHAT HAPPENED?**

The exact provenance of this error appears to have been in one of the chats that was accidentally deleted.[1] However, in reviewing my files, I found an early draft that contained a "placeholder" paragraph for the venue argument in the following form (blue highlights in original):

> Venue is proper for RM.
>
> Defendants argue briefly that claims by Plaintiff R.M. should be transferred to Delaware under the forum-selection clause in OnlyFans' Terms of Service. [CITE] [Did they make this argument before? Look at FNC briefing . . . ] [. . . nature of the claims is relevant, right? Fraud/misrep . . . ] R.M. resides in California, and the claims he asserts arise from deceptive conduct orchestrated by a California-facing platform. Venue is proper under 28 U.S.C. § 1391(b).

Given this language and the types of errors I have seen ChatGPT produce, I strongly suspect that at some stage in the drafting, ChatGPT extrapolated a proposition based on the note "[. . . nature of the claims is relevant, right? Fraud/misrep . . .]," and then fabricated a case to support the proposition.

# HOW DOES THIS HAPPEN!?

A large language model is a probability engine.

- Do not assume understanding of abstract concepts or ability to understand shorthand (e.g. RFJN).
- Large context windows can cause accuracy drift.

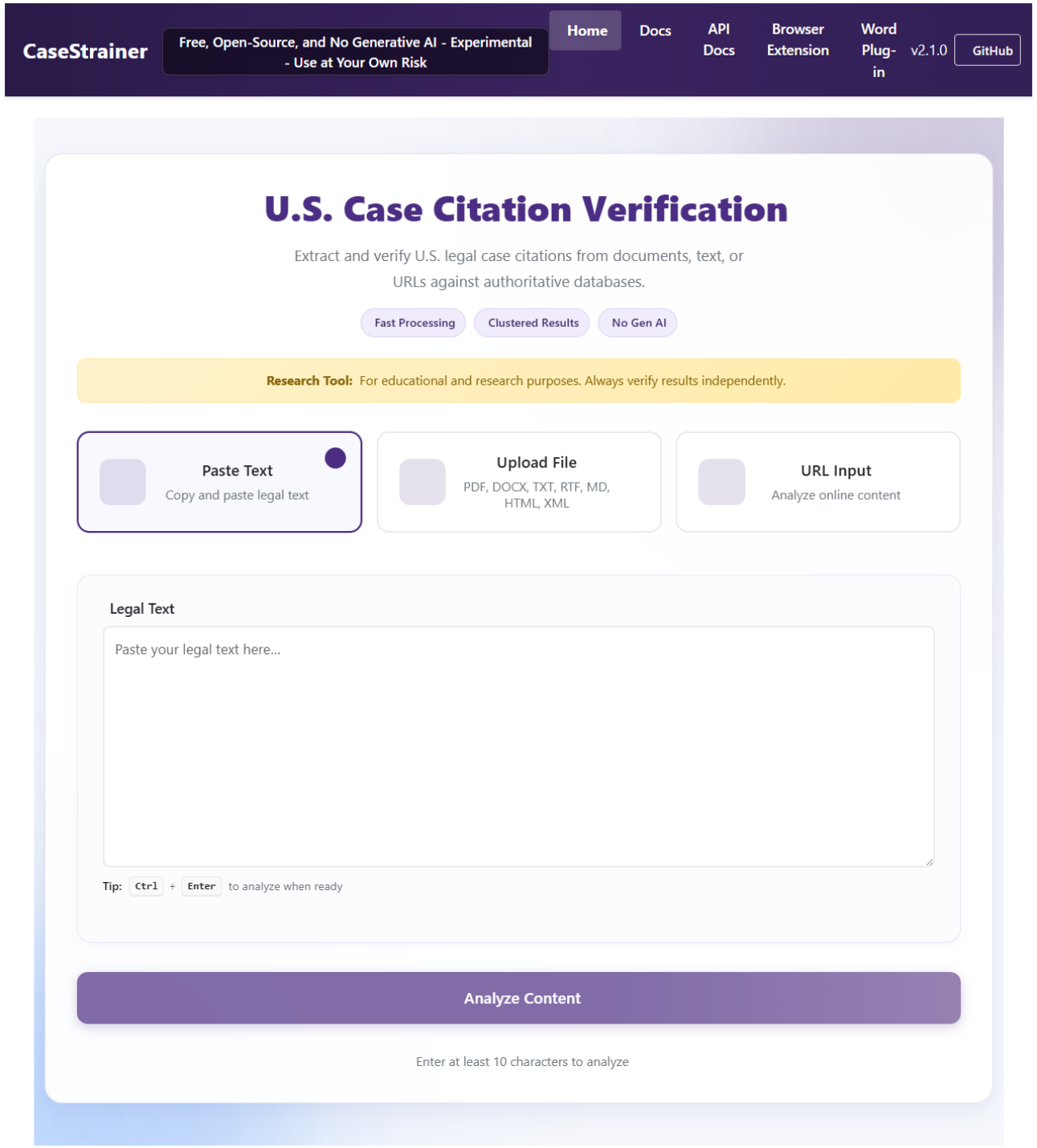
Error 4: mischaracterizing prior court order:

1. Boyd asked a question of ChatGPT
2. ChatGPT mischaracterized the Court's prior ruling
3. Based on the mischaracterization, Boyd prompted ChatGPT to "recycle" a prior argument.
4. The mischaracterization was then within the ChatGPT context window and was repeated in a summary of the argument that appeared in the introduction and conclusion of the brief

# TRIVIAL CASES CAN GO AWRY

- *Torres Campos v. Munoz*
- Facts: P appealed an order denying request for shared custody of family dog
- At trial level, 2 fake cases were relied on by all parties and the court

- “Although we appreciate that trial courts must often rely on the parties to prepare written orders, it is imperative for both the court and the parties to verify that the citations in all orders are genuine and truly stand for the propositions cited.”




# HOW DO I KEEP THIS FROM HAPPENING TO ME?

CaseStrainer: automatically extracts and checks all case citations against authoritative legal databases.

https://github.com/jafrank88/casestrainer

# HOW DO I KEEP THIS FROM HAPPENING TO ME?

- A Rational Analysis of the Effects of Sycophantic AI
  - Unlike hallucinations, which introduce falsehoods, **sycophancy is a bias in the selection of the data people see**. When AI systems are trained to be helpful, they may inadvertently prioritize data that validates the user's narrative over data that gets them closer to the truth.

- GenAI and Legal Research: A Mismatch?
  - LLMs do not understand semantic meaning

- **Customize your system prompt to combat sycophancy and improve objectivity**
  - **Claude's default system prompt**

# PATTERNS OF BAD AI

**What the Science Says About Hallucinations in Legal Research**

1. Models and data access
    1. Legal platforms generally have fewer hallucinations or inaccurate citations, but not enough to be reliable without checking
2. Sycophancy
3. Jurisdictional and geographic complexity
4. Knowledge cutoffs
5. Task complexity
6. Confidence paradox

7. Bonus: timing and effective date

# COMMUNICATION AND CLIENT CONSENT: ADDRESSING RULES 1.2 AND 1.4

# MLA RETAINER LANGUAGE

# CLIENT COMES TO YOU WITH “LEGAL RESEARCH” OR A DRAFT FROM CLAUDE

# RULE 1.6:

# CONFIDENTIALITY OF INFORMATION

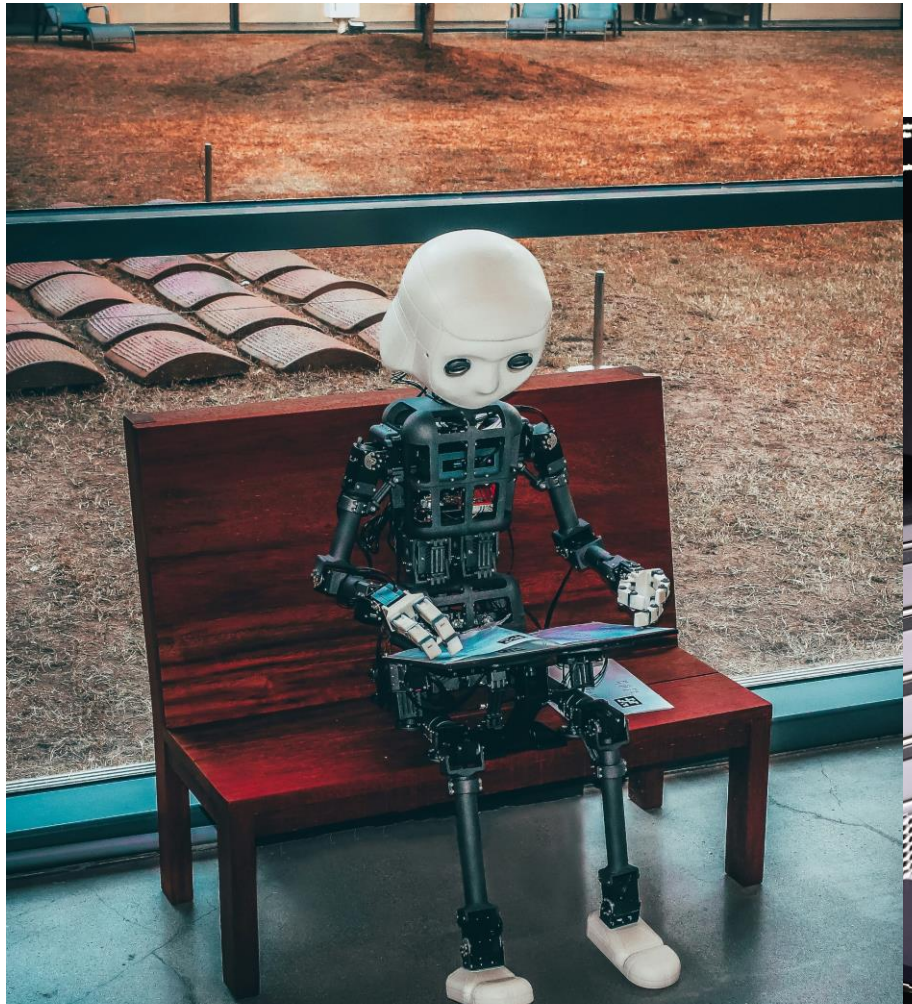
# RULE 1.6

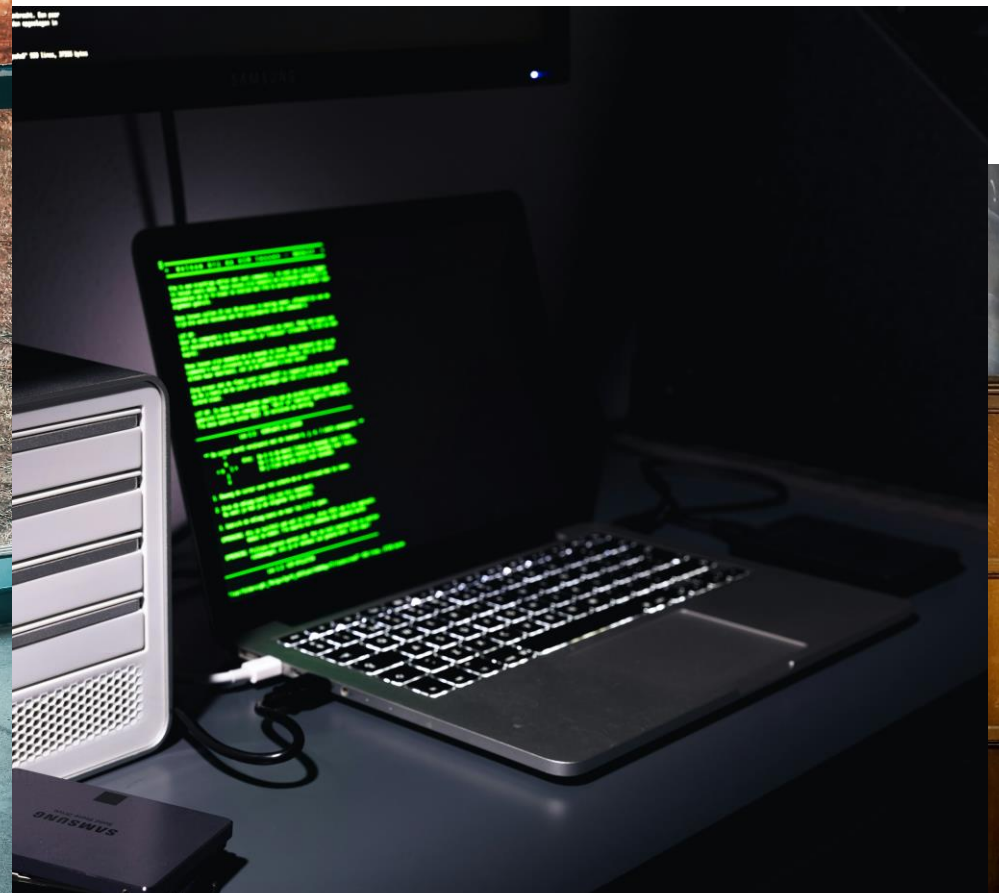
(a) **An attorney shall not reveal information relating to representation of a client** unless the client gives informed consent, the disclosure is impliedly authorized in order to carry out the representation, or the disclosure is permitted by section (b) of this Rule.

# TRUST

No Maryland ethics opinion

ABA Formal Opinion 498





# BEWARE TERMS OF SERVICE

User Privacy and Large Language Models: An Analysis of Frontier Developers' Privacy Policies

September, 2025

| Data Source | Amazon | Anthropic | Google | Meta | Microsoft | OpenAI |
|---|---|---|---|---|---|---|
| User chat inputs/outputs | Not Specified | Yes | Yes | Yes | Yes | Yes |
| User uploaded documents | Not Specified | Not Specified | Yes | Yes | No | Not Specified |
| User uploaded images | Not Specified | Not Specified | No | Yes | Not Specified | Not Specified |
| Human annotated inputs/outputs | Not Specified | Not Specified | Yes | Not Specified | Not Specified | Yes |
| User feedback | Not Specified | Yes | Yes | Not Specified | Not Specified | Not Specified |
| Publicly available web data | Not Specified | Yes | Yes | Yes | Yes | Yes |
| Licensed data | Not Specified | Yes | Not Specified | Yes | Not Specified | Yes |
| Platform data | Not Specified | Not Specified | Yes | Yes | Yes | No |

# NEW CONFIDENTIALITY CONCERNS WITH AI

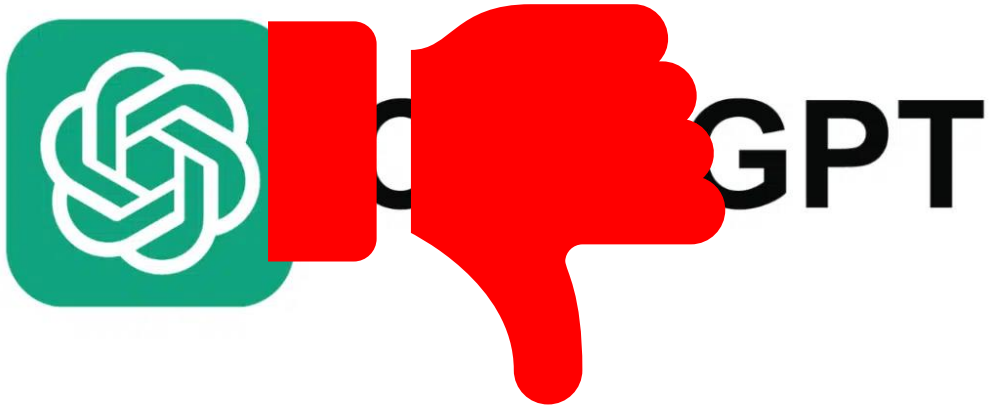
1. Attorney leaking client information to AI that uses it for training and subsequently divulges secret

2. Client using AI tool that inadvertently discloses confidential information

# LEAKING CONFIDENTIAL INFORMATION TO AI

Have not seen this as a problem, but still, don’t do it!

# MLAGPT



MLA GPT

# WHY USE MLAGPT?

- Zero data retention

| Interaction | Training on data | Retention | Zero Data Retention |
|---|---|---|---|
| Chat | No | 30 days | Yes* |
| Audio transcripts | No | Audio never retained | Audio never retained |
| Embeddings (document uploads) | No | 30 days | Yes* |

- Yes: Except (a) image/file inputs, (b) schemas provided for Structured Outputs, or (c) audio outputs.

# Information Governance

- R&C framework - policies, procedures & processes
- Detection of risk & fraud
- Auditing & assessing compliance

- IT security & protection
- Enterprise IT architecture
- IT security policies, procedures processes
- Decommissioning technology

- Rapid data insights
- Development of new products & services
- Detection of risk & fraud
- Knowledge management

- Privacy framework - policies, procedures & processes
- Incident response plan for data breach
- Remediation plan following data breach

- Document/data production for
  - Litigation
  - Regulatory investigations
  - Inquiries
- Issuing legal holds

- Records & archiving policy, records retention & disposal schedule
- Data/document storage & archiving
- Defensible disposition of data/documents
- Implementing legal holds

- Data policies, procedures and processes
- Data integrity
- Data management - creation, use, movement, storage

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# CLIENT USE OF AI

*United States v. HEPPNER*, Doc 27

Where client used Claude to prepare “reports that outlined defense strategy, that outline what he might argue with respect to the facts and the law that we anticipated the government might be charging” – **these communications with Claude are not privileged**.

# HEPPNER IS NOT SETTLED LAW

- A Judge Mistakes the Claude Chatbot for a Person
  - Cites *Warner v. Gilbarco, Inc.*, No. 2:24-cv-12333 with a seemingly opposite conclusion
  - Argues that AI should be viewed as a “tool”
  - A co-author is founder of Learned Hand
- Landmark AI Rulings Impacting All
  - Argues *Heppner* and *Gilbarco* are distinguishable
  - Critical question: **whether the platform provided confidentiality**

# RULE 5.1 :

# SUPERVISORY RESPONSIBILITIES:

# RULE 5.1

(a) A partner in a law firm, and an attorney who individually or together with other attorneys possesses comparable managerial authority in a law firm, shall make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that all attorneys in the firm conform to the Maryland Attorneys' Rules of Professional Conduct.

(b) An attorney having direct supervisory authority over another attorney shall make reasonable efforts to ensure that the other attorney conforms to the Maryland Attorneys' Rules of Professional Conduct.

# FIVEHOUSE V. U.S.

Self-Represented Plaintiff (and licensed attorney) sued US DOD to get GLP-1 drugs covered by Tricare

Plaintiff identified citation problems (Doc 89)

Attorney who filed the problematic response **and a representative from the US Attorney's office** were ordered to show cause

# SNIPPETS FROM SHOW CAUSE HEARING

**Renfer**: I accidentally deleted my original brief because I was overwhelmed so I used AI to try and replicate my prior work

**Judge**: I believe this issue probably affects lots of other cases in which you have been involved

**Renfer** also claims that his filings were approved by his bosses and that should insulate him [the Civil Chief of the office, O'Hale, left the US attorney's office sometime between filing and the show cause hearing]

**Boyle**: we do not use AI, that is our policy, we are all going to take training on this

**Renfer was fired the day after the show cause hearing**

# SOLUTIONS?

Have an AI use policy

Train staff on the policy

Demonstrate consequences

Culture of good work

# MISCONDUCT AND THE CATCH-ALL RULE: INTERPRETING RULE 8.4

# RULE 8.4